



CHAPTER cxxx.

An Act to authorise the Llanelly and District Electric Supply Company Limited to abandon their light railways and provide and run trolley vehicles and omnibuses and for other purposes. A.D. 1930.
[10th July 1930.]

WHEREAS the Llanelly and District Electric Supply Company Limited (in this Act called "the Company") have under the powers contained in the Llanelly and District Light Railways Orders 1907 and 1910 constructed and work a system of light railways situate partly in the borough of Llanelly and partly in the rural district of Llanelly in the county of Carmarthen :

And whereas it is expedient that the Company be authorised to abandon their light railways and to provide and run trolley vehicles along the streets and roads in which the said light railways are constructed and along other routes and to run omnibuses and that the provisions contained in this Act with respect thereto should be enacted :

And whereas it is expedient that such other powers be conferred upon the Company and such other provisions be made as are in this Act more particularly set forth :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent

A.D. 1930. Majesty by and with the advice and consent of the
— Lords Spiritual and Temporal and Commons in this
present Parliament assembled and by the authority
of the same as follows :—

PRELIMINARY.

Short title. 1. This Act may be cited as the Llanelly District
Traction Act 1930.

Citation. 2. The Llanelly and District Light Railways Orders
1907 and 1910 (as varied by this Act) and this Act may
be cited together as the Llanelly District Traction Acts
1907 to 1930.

Interpreta- 3. In this Act the several words and expressions
tion. to which meanings are assigned by the Acts wholly or
partially incorporated herewith have the same respective
meanings unless there be something in the subject or
context repugnant to such construction And in this Act
unless the context otherwise requires—

“ The Order of 1907 ” and “ the Order of 1910 ”
mean respectively the Llanelly and District
Light Railways Order 1907 and the Llanelly
and District Light Railways (Revival and
Extension of Time) Order 1910;

“ The existing Orders ” means the Llanelly and
District Light Railways Orders 1907 and 1910;

“ The existing light railways ” means the light
railways constructed by the Company under
the powers of the existing Orders;

“ Trolley vehicle ” means a mechanically propelled
vehicle adapted for use upon roads and moved
by electrical power transmitted thereto from
some external source;

“ The trolley vehicles ” means the trolley vehicles
provided worked and run by the Company
under the powers of this Act;

“ Apparatus ” includes all posts poles standards
brackets cables conductors tubes mains trans-
formers feeders wires and other apparatus and

equipment for the purpose of working and lighting trolley vehicles; A.D. 1930.

“Trolley vehicle routes” means the routes upon which the Company are by this Act or by an Order under the section of this Act the marginal note whereof is “Minister may authorise new routes” authorised to work and use trolley vehicles;

“Omnibus” shall have the meaning assigned to that expression in section 14 of the Roads Act 1920;

“Omnibus routes” means any routes upon which the Company work and run omnibuses under the section of this Act the marginal note whereof is “Power to run omnibuses”;

“Specified routes” means the routes of the existing light railways and the new routes (1) (2) (3) and (4) described in and authorised by paragraph (b) of the section of this Act the marginal note whereof is “Power to use trolley vehicles”;

“The undertaking” means the undertaking of the Company authorised by the existing Orders and this Act;

“Trolley vehicle undertaking” and “omnibus undertaking” mean respectively so much of the undertaking as relates to trolley vehicles and omnibuses (as the case may be);

“Road authority” means with reference to any road or part of a road over which any proposed trolley vehicle service or omnibus service will pass the authority company or person charged with or liable to contribute to the maintenance of such road or part of a road;

“The corporation” means the mayor aldermen and burgesses of the borough of Llanelly;

“The county council” means the county council of the county of Carmarthen;

“The Minister” means the Minister of Transport.

A.D. 1930. LIGHT RAILWAYS TROLLEY VEHICLES AND OMNIBUSES.

Power to
use trolley
vehicles.

4. The Company may subject to the provisions of this Act provide maintain and equip trolley vehicles and work and run the same—

(a) in the borough of Llanelly and the rural district of Llanelly along the routes of all or any of the existing light railways; and

(b) along the following routes (that is to say) :—

In the borough of Llanelly—

(1) Commencing at the junction of Station Road and Glanmor Road (Heolfawr) thence along the said Glanmor Road and Station Approach and terminating at the terminus of the existing light railways in Station Road;

(2) Commencing at the junction of Station Road and Stepney Street thence along Spring Gardens and Frederick Street and terminating at the junction of Frederick Street and Vaughan Street;

(3) Commencing at the junction of Vaughan Street and Bridge Street thence along Bridge Street and terminating at the junction of Bridge Street and Thomas Street;

In the rural district of Llanelly—

(4) Commencing in the Felin-Foel Road at the terminus of the existing light railways thence along and terminating in that road at its junction with Llethrey Road and the road leading to Llandilo;

(5) Commencing in the Swansea Road at the terminus of the existing light railways thence along and terminating in that road at the north-west end of Loughor Bridge :

Provided that the Company shall not without the consent in writing of the corporation operate trolley vehicles in more than one direction on any part of routes Nos. (2) and (3) :

Provided also that before equipping any route for working trolley vehicles to include a turning point or before arranging for a new turning point on any route the

Company shall submit plans of the turning point to the Minister for approval and shall also submit a copy of such plans to the local and road authority and that before approving any such plans the Minister shall give to the local authority and the road authority an opportunity of making representations with reference thereto and shall consider any such representations which may be made to him :

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Provided further that no turning point shall be fixed upon any road or street belonging to or maintained by a railway company without the consent in writing of such company which consent shall not be unreasonably withheld.

5.—(1) The Company may and if the Minister by an order so requires shall abandon and discontinue the whole or any part of any of the existing light railways if and when they have provided along the route thereof apparatus and equipment for the working of trolley vehicles in pursuance of the powers of the section of this Act of which the marginal note is “As to electrical works” and have given to the road authority not less than one month’s previous notice of their intention to abandon and discontinue such light railways or any of them or any part thereof.

As to abandonment of existing light railways.

(2) (a) When the Company have in pursuance of the foregoing provisions of this section abandoned and discontinued the whole or part of any of the existing light railways the county council may take up and remove the rails and paving setts of the light railway or part thereof so abandoned and discontinued and fill in the ground and make good the surface and restore the portion of road upon which such rails and paving setts were laid or placed.

(b) If any difference arises between the corporation and the county council as to the time at which or the manner in which the powers of this subsection shall be exercised by the county council with reference to roads in the borough of Llanelly either party may apply to the Minister for his directions and the Minister may on any such application direct that the said powers shall be exercised within such time and in such manner as he may prescribe and any directions so given by the Minister shall be final and binding.

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(3) Within one month from the date or dates of the abandonment and discontinuance of any light railway or part thereof the Company shall pay to the county council a sum calculated—

(a) in the case of a road within the borough of Llanelly on the basis of three shillings per superficial yard; and

(b) in the case of a road outside the borough of Llanelly on the basis of four shillings per superficial yard

of the portion of the road in which the light railway or part thereof so abandoned and discontinued is laid which the Company are at the date of the passing of this Act liable to maintain and as from such date or dates the rails paving setts and substructure thereof shall become and be the property of the county council who may if they think fit at any time thereafter use or dispose thereof.

(4) The county council and the corporation may enter into and carry into effect agreements and arrangements for and with respect to the taking up and removal by the corporation of the rails paving setts and substructure of any light railway or part thereof so abandoned or discontinued and the reinstatement of the road in which such rails paving setts and substructure are situate and for and with respect to the payment of the expenses incurred by the corporation in such removal taking up and reinstatement and the county council shall in consideration of the payment of the sum referred to in subsection (3) of this section free and relieve the Company from all liability for the payment of any such expenses incurred by the corporation.

(5) As from the date on which the Company abandon and discontinue the whole or any part of any of the existing light railways in pursuance of the foregoing provisions of this section all obligations and liabilities of the Company in relation to the light railways or part thereof so abandoned and the rails and paving setts thereof or the removal of such rails and paving setts and the restoration maintenance repair or widening of any part of the roadway or land in which the same are situate existing under or by virtue of the existing Orders or any Act lease agreement or other instrument shall cease and determine.

6.—(1) If at any time hereafter the Company desire to provide maintain equip and use trolley vehicles upon any road as defined by the Tramways Act 1870 (other than the roads along which they are authorised to use trolley vehicles under the foregoing provisions of this Act) they may make application to the Minister and the Minister is hereby empowered to make a Provisional Order authorising the use by the Company of trolley vehicles subject to such conditions and restrictions (if any) as he may think fit upon any road to which such application relates and containing such incidental provisions as the Minister may deem expedient and subject to the terms of the Provisional Order the provisions of this Act (other than the section of this Act of which the marginal note is "Restricting running of omnibuses in competition") shall apply as if the use of trolley vehicles upon such road were authorised by this Act.

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Minister
may
authorise
new routes.

(2) No application under this section shall be entertained by the Minister unless the Company shall—

- (a) have published once in each of two successive weeks in the months of October or November in some newspaper or newspapers circulating in the borough or district to which the application relates notice of their intention to make such application and have published the like notice once in one or other of the same months in the London Gazette;
- (b) have posted for fourteen consecutive days in the months of October or November in conspicuous positions in each of the roads along which it is proposed to run trolley vehicles a notice of their intention to make such application;

and each such notice shall state the time and method for bringing before the Minister any objections to the grant of such application.

(3) The Minister may and he is hereby empowered to prescribe the procedure with respect to any application for a Provisional Order under this section.

(4) The Minister shall consider any such application and may if he thinks fit direct an inquiry in relation thereto to be held or may otherwise inquire as to the propriety of proceeding upon such application and he

A.D. 1930. — shall consider any objection to such application that may be lodged with him in accordance with the prescribed procedure and shall determine whether or not it is expedient and proper that the application be granted either with or without addition or modification or subject or not to any restriction or condition.

(5) No Provisional Order shall be made without the consent of the local authority of the district in which the route is situate and (where the local authority are not the road authority) without the consent of the road authority.

(6) In any case where it shall appear to the Minister expedient that the application be granted he may settle and make a Provisional Order authorising the same and shall as soon as conveniently may be thereafter procure a Bill to be introduced into either House of Parliament for an Act to confirm the Provisional Order which shall be set out at length in the schedule to the Bill and until confirmation with or without amendment by such Act of Parliament a Provisional Order under this section shall not have any operation.

(7) If while any such Bill is pending in either House of Parliament a petition is presented against any Provisional Order comprised therein the Bill so far as it relates to the Order petitioned against may be referred to a select committee and the petitioner shall be allowed to appear and oppose as in the case of a Bill for a special Act.

(8) The Act of Parliament confirming a Provisional Order under this section shall be deemed a public general Act.

(9) The making of a Provisional Order under this section shall be prima facie evidence that all the requirements of this section in respect of proceedings required to be taken previously to the making of such Provisional Order have been complied with.

(10) Any expenses incurred by the Minister in connection with the preparation and making of any such Provisional Order and any expenses incurred by the Minister in connection with any inquiry under this section shall be paid by the Company.

7.—(1) Subject to the provisions of this Act the Company may in under or over the surface of the streets or roads along or adjoining those along which they are or may be authorised to run trolley vehicles or in which it may be necessary so to do in order to connect the apparatus and equipment for working such vehicles with any generating station place erect and maintain all necessary and proper standards brackets conductors mains cables wires posts poles and any other necessary or convenient apparatus and equipment for the purpose of working the trolley vehicles by electrical power and may for that purpose subject to the provisions of Part II of the Tramways Act 1870 as incorporated with this Act and the provisions of this Act open and break up any such street or road and any sewers drains water or gas pipes tubes wires telephonic and telegraphic apparatus therein or thereunder and may supply electricity for the purpose of working the trolley vehicles :

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As to
electrical
works.

Provided that—

- (a) No apparatus shall be erected on the carriage-way of any public street or road except with the consent of the Minister;
- (b) All posts and apparatus erected by the Company under this section in any street or road shall be of such design as the local authority and road authority may approve and such posts and apparatus and all apparatus placed or laid under any street or road shall be placed in such position as the local authority and road authority may approve;
- (c) The route in which any apparatus is to be placed or erected for the purposes of connecting the trolley vehicle routes or any of them with a generating station shall be approved by the local authority and (if the local authority are not the road authority) the road authority;
- (d) Any approval of a local or road authority under the aforesaid provisoes (b) and (c) shall not be unreasonably withheld.

(2) The Company may also adapt and use for the purpose of working trolley vehicles any apparatus and

A.D. 1930. — equipment already provided for working the existing light railways.

(3) If any post or overhead wire erected or used for the purposes of the trolley vehicles becomes owing to the construction of any new road or any road widening or improvement in the opinion of the road authority an obstruction the Company shall alter the position thereof in such manner as the road authority may direct but the Company may appeal against the direction to the Minister and the decision of the Minister shall be final.

(4) No advertisement (other than notices relating to the undertaking) shall be displayed on any apparatus erected or used upon any road or bridge under the powers of this Act without the consent of the local and road authority.

(5) Nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electricity (Supply) Acts 1882 to 1928 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

(6) In this section the expression "generating station" has the meaning assigned to it by section 25 of the Electric Lighting Act 1909.

Period for
completion
of trolley
vehicle
equipment.

8. If within five years from the passing of this Act the Company shall not have commenced to run trolley vehicles along any of the routes of the existing light railways and the new routes described in and authorised by paragraph (b) of the section of this Act the marginal note whereof is "Power to use trolley vehicles" the powers conferred by this Act with reference to the running of trolley vehicles along the route or routes along which the Company have not commenced to run trolley vehicles shall cease to be exerciseable as from the expiration of that period.

Company
to have
exclusive
right of
using trolley

9. Subject to the provisions of this Act the Company shall have the exclusive right of using any apparatus provided erected or maintained by them for the purpose of working the trolley vehicles and any person (except by

agreement with the Company) using the said apparatus shall for every offence be liable to a penalty not exceeding twenty pounds. A.D. 1930.
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vehicle
apparatus.

10.—(1) The trolley vehicles shall not be deemed to be light locomotives within the meaning of the Locomotives on Highways Act 1896 nor shall they be deemed to be motor cars within the meaning of any of the provisions of the Motor Car Act 1903 (except subsection (1) of section 1 and the provisions necessary for enforcing that subsection section 6 and the provisions as amended by the Roads Act 1920 relating to the licensing and licences of drivers) and subject to that exception neither the Motor Car Acts 1896 and 1903 nor any byelaws or regulations made thereunder nor the enactments mentioned in the schedule to the Locomotives on Highways Act 1896 nor the Locomotives Act 1898 shall apply to the trolley vehicles. Trolley
vehicles
not to be
deemed
light loco-
motives or
motor cars.

(2) The trolley vehicles shall not be deemed to be omnibuses within the meaning of the Town Police Clauses Acts 1847 and 1889.

11. Nothing in this Act shall in any way affect the duties of excise now payable by law on licences to be taken out for trolley vehicles as hackney carriages. Licence
duties on
trolley
vehicles.

12.—(1) The trolley vehicles and the electrical equipment thereof used under the authority of this Act shall be of such form construction weight and dimensions as the Minister may approve and no trolley vehicle shall be used by the Company which does not comply with the requirements of the Minister. Approval
of vehicles
and equip-
ment by
Minister.

(2) The Company shall not (unless the Minister otherwise approves) use on any trolley vehicle run by them any tyres other than pneumatic tyres.

(3) The Minister before giving any approval under subsection (1) of this section shall give to the road authority an opportunity of making representations with reference to the matter in question and shall consider any such representations which may be made to him.

(4) Before applying to the Minister for his approval of the weight of any trolley vehicle to be used upon any road which crosses a bridge belonging to and repairable by a railway company the Company shall give to the

A.D. 1930. railway company notice of the weight of the trolley vehicles proposed to be used by them upon such road and the Minister shall consider and determine after such inquiry as he may think fit any objections which may be submitted by the railway company to him on the ground that the strength of the bridge is insufficient to carry trolley vehicles of such weight. Provided that a copy of the objections shall be sent by the railway company to the Company at the same time as they are sent to the Minister.

Inspection by Minister.

13. No trolley vehicle route shall be opened for public traffic until it has been inspected and certified to be fit for traffic by an officer appointed by the Minister.

Company to provide reasonable service.

14. The Company shall at all times after the opening of any of the trolley vehicle routes for public traffic provide such service of trolley vehicles thereon (including through services) as may together with any omnibus services provided by the Company in accordance with the provisions of this Act or any service of existing light railways be reasonably required in the public interests and the Company shall be liable to a penalty not exceeding five pounds for every day on which they shall fail (unless for reasons beyond their control) to comply with the provisions of this section. Any question which may arise as to the service or services required in the public interests shall be determined on the application of the Company or of a local authority by the Minister whose decision shall be final.

Incorporation and application of certain provisions of Tramways Act 1870 to trolley vehicles.

15.—(1) The following provisions of the Tramways Act 1870 (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) shall apply to the trolley vehicles and the apparatus used under the authority of this Act and for the purpose of such application such provisions shall be read and have effect as if the apparatus to be constructed or used in the streets or roads for moving the trolley vehicles by electrical power were tramways and as if the trolley vehicles were carriages used on tramways :—

Part II (Relating to the construction of tramways) except sections 22 25 28 and 29;

- Section 41 (Tramways to be removed in certain cases); A.D. 1930.
 Section 42 (Proceedings in case of insolvency of promoters);
 Section 44 (Power of sale);
 Section 46 (Byelaws by local authority Promoters may make certain regulations);
 Section 47 (Penalties may be imposed in bye-laws);
 Section 48 (Power to local authority to license drivers conductors &c.);
 Section 49 (Penalty for obstruction of promoters in laying out tramway);
 Section 51 (Penalty on passengers practising frauds on the promoters);
 Section 53 (Penalty for bringing dangerous goods on the tramway);
 Section 55 (Promoters or lessees to be responsible for all damages);
 Section 56 (Recovery of tolls penalties &c.);
 Section 57 (Right of user only);
 Section 60 (Reserving powers of street authorities to widen &c. roads); and
 Section 61 (Power for local or police authorities to regulate traffic in roads).

(2) Nothing in this Act shall be deemed to exclude a trolley vehicle from the provisions of section 78 of the Highway Act 1835 as to the side of the road on which any wagon cart or other carriage is to be kept.

16. The provisions of section 28 of the Town Police Clauses Act 1847 with respect to the side of the road at which a carriage or other vehicle is to be kept when meeting or passing any other carriage or vehicle shall apply to the driver of the trolley vehicle. Application of section 28 of Town Police Clauses Act 1847.

17. For the protection of the county council the following provisions shall notwithstanding anything in this Act contained and unless otherwise agreed in writing between the county council and the Company apply and have effect with respect to the use of the trolley For protection of county council.

A.D. 1930. — vehicles on and the execution of any works affecting any county road forming part of the trolley vehicle routes (that is to say) :—

- (1) The Company shall pay to the county council the sum of eight hundred and fifty pounds by way of contribution towards the cost of widening or reconstructing the bridges respectively known as “ Felin-Foel bridge ” and “ Sandy bridge ” :
- (2) The said sum of eight hundred and fifty pounds shall be paid as to one-half thereof on the completion of the widening or reconstruction of Felin-Foel bridge or on the commencement of the running of trolley vehicles along the road thereon whichever of those events shall last happen and as to the other half of the said sum on the completion of the widening or reconstruction of Sandy bridge or on the commencement of the running of trolley vehicles along the road thereon whichever of those events shall last happen :
- (3) If the Company in the execution of any works in or affecting any county road shall cause any damage injury or disturbance to such road or any road bridge culvert drain sewer or other work and shall fail properly to make good all such damage injury or disturbance then it shall be lawful for the county council after giving fourteen days’ notice in writing to the Company of the alleged failure and of the works which they propose to execute to do all works necessary for making good all such damage injury or disturbance and the Company shall repay to the county council all costs charges and expenses which the county council shall reasonably and properly incur in carrying out such works including all reasonable expense of superintendence :
- (4) If it becomes necessary that the working of the trolley vehicles over any bridge maintainable by the county council be wholly or in part stopped or delayed for the purpose of any repairs to or alteration of such bridge and if the county council give the Company twenty-eight days’ notice in writing (or in case of emergency such notice as may be reasonably practicable)

requiring such stoppage or delay the working of the trolley vehicles shall be stopped or delayed as reasonably required by such notice but no such working shall be stopped or delayed for a longer period than may be absolutely necessary for effecting such purposes as aforesaid and in such case the county council shall not be liable to pay compensation in respect of such stoppage or delay as aforesaid :

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- (5) The Company shall not without the consent in writing of the county council (which consent shall not be unreasonably withheld) place erect or attach any post or other support for any wire or any feeder box on or to the structure of any such bridge as aforesaid and any such post support or box which shall with such consent have been so placed erected or attached shall be temporarily removed at any time when required by the county council in connection with the maintenance reconstruction widening or alteration of any such bridge :
- (6) If any difference shall arise under this section between the county council and the Company such difference shall be referred to and determined by an arbitrator to be agreed upon between them or in default of agreement to be appointed upon the application of either party (after notice in writing to the other of them) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

18. In the application of section 30 of the Tramways Act 1870 to the trolley vehicles and the apparatus used under the authority of this Act the provisions of that section shall be read and have effect as if "local authority" were mentioned in that section in addition to "company persons or person" Provided that any penalty to be recovered under subsection (5) of that section shall be appropriated to that fund of the local authority to which their revenues in respect of gas or water (as the case may be) are appropriated.

For protec-
tion of gas
and water
mains of
local
authorities.

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For protec-
tion of
Llanelly
Gaslight
Company.

19. For the protection of the Llanelly Gaslight Company (hereinafter in this section referred to as "the gas company") the following provisions (in addition to the provisions of Part II of the Tramways Act 1870 as incorporated with this Act) shall unless otherwise agreed in writing between the Company and the gas company apply and have effect notwithstanding any other provisions of this Act (that is to say):—

- (1) The provisions of section 33 (Provision as to gas and water companies &c.) of the Order of 1907 which at the passing of this Act enure for the protection of the gas company in relation to the existing light railways shall continue in force and enure for the protection of the gas company until the date when the taking up and removal of the existing light railways or any part thereof or the rails and paving setts thereof shall be commenced:
- (2) If any injury shall be caused to any main pipe syphon or other apparatus (all of which are in this section referred to as "apparatus") of the gas company during and by reason of the taking up or removal by the Company of any of the existing light railways or any part thereof or of the rails paving setts or equipment thereof or the execution by the Company of any works for or in connection with such taking up or removal or for or in connection with the restoration of the portion of the road or footpath disturbed by such taking up or removal the Company shall bear and on demand repay to the gas company the amount of the expense reasonably incurred by them in making good such injury and shall indemnify the gas company against all claims and demands arising out of such injury:
- (3) If any works to be executed pursuant to the section of this Act of which the marginal note is "As to electrical works" involve the lowering or altering the position of any apparatus of the gas company the gas company may if they so desire within seven days after the receipt by them of notice of the intended commencement by the Company of such works

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give notice in writing to the Company of the intention of the gas company to lower or alter the position of such apparatus and in that case the gas company shall commence execute and complete such lowering or alteration with all reasonable dispatch and may recover the reasonable expense incurred by them in so doing from the Company :

- (4) If any structure erected by the Company under the powers of either of the sections of this Act of which the marginal notes are respectively "Shelters or waiting rooms" and "Cloak-rooms &c." is situate over any apparatus of the gas company laid or placed before the erection of such structure and the gas company at any time after such erection give to the Company notice in writing of their desire to obtain access to such apparatus the Company shall either remove temporarily such structure or so much thereof as shall require to be so removed in order to afford such access or (if the Company determine not to remove such structure or part thereof) bear any additional expense due to the existence of such structure which may reasonably be incurred by the gas company in obtaining such access :
- (5) If any difference shall arise between the gas company and the Company under this section it shall be referred to and settled by an arbitrator to be agreed upon between them or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

20. For the protection of the Great Western Railway Company (in this section referred to as "the railway company") the following provisions shall unless otherwise agreed in writing between the Company and the railway company apply and have effect in relation to the trolley vehicles (that is to say) :—

For protec-
tion of
Great
Western
Railway
Company.

- (1) Notwithstanding anything in this Act contained the Company shall not without the previous

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consent of the railway company equip Station Approach (being part of route (1) authorised by this Act) for the working of trolley vehicles so long as that approach remains the property of the railway company :

- (2) The apparatus where the same shall be erected or placed upon across under or over any bridge or the approaches thereto or over any level crossing or other work belonging to or maintainable by the railway company or will otherwise affect the same shall be erected or placed and maintained according to plans and particulars to be previously submitted to and reasonably approved by the railway company Provided that if the railway company do not within twenty-eight days after such submission signify their disapproval of such plans and particulars they shall be deemed to have approved thereof :
- (3) All such apparatus shall be erected or placed under the superintendence (if the same be given) and to the reasonable satisfaction of the railway company The Company shall so construct maintain and use the apparatus as not to affect injuriously any such bridge approaches or other work and in the event of any injury being occasioned to such bridge approaches or work by the construction maintenance user or removal of the apparatus upon across under or over the same the railway company may make good the injury and may recover from the Company the reasonable expenses of so doing :
- (4) The Company shall on demand pay to the railway company the reasonable expense (if any) of watching the railway and property of the railway company which shall be necessary during and in consequence of the execution or repair by the Company under or in pursuance of this Act of any apparatus affecting any bridge or other work belonging to or maintainable by the railway company for preventing all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Company or their contractors or any person in the employ of either of them :

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- (5) The Company shall not in any manner in the execution maintenance user or repair of any of the apparatus obstruct or interfere with the free uninterrupted and safe user of any railway or siding belonging to or maintainable by the railway company or any traffic thereon :
- (6) The Company shall be responsible for and make good to the railway company all losses damages and expenses which may be occasioned to the railway company or any of their works or property or to any works or property which they may be liable to maintain or to the traffic on their railways or to any company or person using the same by or by reason of the execution or failure of any of the apparatus or by or by reason of any act default or omission of the Company or of any person in their employ or of their contractors in connection with the apparatus or any part thereof and the Company shall effectually indemnify and hold harmless the railway company from all claims and demands upon or against them by reason of such execution or failure or of any such act default or omission :
- (7) If the railway company in the exercise of their existing powers shall hereafter require to widen lengthen strengthen reconstruct alter or repair any of their bridges approaches or other works under or upon which any part of the apparatus is laid or to widen or alter any railway thereunder or thereover the Company shall afford to the railway company all reasonable and proper facilities for the purpose and if it shall be necessary for such purpose that such part of the apparatus be taken up diverted or removed and if the railway company accordingly give to the Company twenty-eight days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such taking up diversion or removal then the working or user of such part of the apparatus shall be stopped or delayed or such part of the apparatus shall be taken up diverted or removed as stated in such notice at the reasonable expense of the Company and under their superintendence (if they shall give such superintendence) but no

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such working or user shall be stopped or delayed for a longer period than may be absolutely necessary for effecting such purpose as aforesaid and such part of the apparatus shall be restored with all practicable dispatch and the railway company shall not be liable to pay compensation in respect of such stoppage delay or taking up diversion or removal :

- (8) If and when the railway company shall require to reconstruct widen lengthen alter repair or paint any bridge under which any electric wire of the Company has been placed under or in pursuance of this Act and if it shall be reasonably necessary for them so to do the Company shall in order to ensure the safety of the workmen employed in such reconstruction widening lengthening alteration repairing or painting cut off the electric current from the trolley wires under such bridge at such time as shall be agreed between the Company and the engineer of the railway company or failing agreement as shall be determined by arbitration under this section unless the Company shall have previously adopted some other means of protection to workmen which shall have been approved by the said engineer Provided that the Company shall not be required to cut off the electric current at any time for a longer period than shall be absolutely necessary for effecting the purpose of the railway company :
- (9) If having regard to the proposed position of any apparatus of the Company authorised by or in pursuance of this Act when considered in relation to the position of the works of the railway company at any point where any apparatus will be constructed over or under the railway or other works of the railway company it becomes necessary in order to avoid danger from the breaking or falling of wires that any electric telegraphic telephonic or signal wires or apparatus of the railway company shall be altered the railway company may execute any works reasonably necessary for such alteration and the reasonable expense of so doing shall be repaid to the railway company by the Company Provided that notice

of their intention to execute such works shall be given by the railway company to the Company : A.D. 1930.
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- (10) The Company shall not for the purposes of this Act make any additional attachments to any bridge or other property of the railway company without the consent in writing of the engineer of the railway company which shall not be withheld unreasonably and such attachments if allowed shall be temporarily removed at any time when reasonably required by the said engineer in connection with the maintenance and reconstruction or alteration of any such bridge :
- (11) If any difference shall arise between the Company and the railway company or their respective engineers with reference to the matters aforesaid such difference shall be referred to arbitration the arbitrator being appointed on the application of either party after notice in writing to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

21. The trolley vehicles may be moved subject to the following provisions by mechanical power (that is to say) :— Provisions as to motive power.

- (1) The mechanical power shall not be used except with the consent of and according to a system approved by the Minister :
- (2) The Minister shall make regulations (in this Act referred to as "the mechanical power regulations") for securing to the public all reasonable protection against danger arising from the use under this Act of mechanical power for the trolley vehicles and for regulating the use of electrical power :
- (3) The Company or any other company or person using any mechanical power for the trolley vehicles contrary to the provisions of this Act or of the mechanical power regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also if a continuing

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offence to a further penalty not exceeding five pounds for every day during which the offence is continued after conviction thereof :

(4) The Minister if he is of opinion—

(a) that the Company or such other company or person have or has made default in complying with the provisions of this Act or of the mechanical power regulations whether a penalty in respect of such non-compliance has or has not been recovered; or

(b) that the use of mechanical power as authorised under this Act is a danger to the passengers or the public;

may by order either direct the Company or such other company or person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Minister may impose and the Company or such other company or person shall comply with every such order. In every such case the Minister shall make a special report to Parliament notifying the making of such order.

Provisions
as to use of
electrical
power.

22. The following provisions shall apply to the use of electrical power under this Act unless such power is entirely contained in and carried along with the trolley vehicles :—

(1) The Company shall employ either insulated returns or uninsulated metallic returns of low resistance :

(2) The Company shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working the trolley vehicle undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus :

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- (3) The electrical power shall be used only in accordance with the mechanical power regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return :
- (4) The Company shall be deemed to take all reasonable and proper precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Company either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the mechanical power regulations and in prescribing such means the Minister shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :
- (5) The provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable and proper precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :
- (6) If any difference arises between the Company and any other party with respect to anything in this section such difference shall unless the parties otherwise agree be determined by the Minister or at his option by an arbitrator to be appointed by him and the costs of such

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determination shall be in the discretion of the Minister or of the arbitrator as the case may be :

- (7) The Company using electrical power contrary to the provisions of this Act or of the mechanical power regulations shall for every such offence be subject to a penalty not exceeding ten pounds and also if a continuing offence to a further penalty not exceeding five pounds for every day during which the offence continues after conviction thereof. Provided always that whether any such penalty has been recovered or not the Minister if in his opinion the Company in the use of electrical power under the authority of this Act have made default in complying with the provisions of this Act or the mechanical power regulations may by order direct the Company to cease to use electrical power and thereupon the Company shall cease to use electrical power and shall not again use the same unless with the authority of the Minister and in every such case the Minister shall make a special report to Parliament notifying the making of such order :
- (8) The expression "Company" in this section shall include any person owning working or running trolley vehicles on any of the trolley vehicle routes.

Byelaws.

23. Subject to the provisions of this Act the Minister may make byelaws with regard to any of the trolley vehicles for all or any of the following purposes (that is to say) :—

For regulating the use of any bell whistle or other warning apparatus fixed to the trolley vehicles ;

For providing that the trolley vehicles shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Minister may deem proper for securing safety ;

For regulating the entrance to exit from and accommodation in the trolley vehicles and the protection of passengers from the machinery of any of the trolley vehicles ;

For providing for the due publicity of all byelaws and mechanical power regulations in force for the time being in relation to the trolley vehicles by exhibition of the same in conspicuous places on the trolley vehicles and elsewhere. A.D. 1930.

Any person offending against or committing a breach of any of the byelaws made by the Minister under the authority of this Act shall be liable to a penalty not exceeding forty shillings.

24. The following sections of the existing Orders shall so far as the same are applicable extend and apply to the trolley vehicles and the apparatus used under the authority of this Act and to the Company in respect thereto in as full and complete a manner as if the said sections (with all necessary alterations and with the substitution of the Minister for the Board of Trade and of the borough of Llanelly and the corporation for the urban district of Llanelly and the Llanelly Urban District Council) were re-enacted in this Act (that is to say) :—

Application to trolley vehicles of certain provisions of existing Orders.

The Order of 1907—

- Section 7 (Power to make crossings &c.);
- Section 8 (Power to generate electricity);
- Section 37 (Agreements with adjoining owners &c.);
- Section 54 (For protection of Postmaster-General) as amended by this Act;
- Section 70 (Purchasing authorities).

The Order of 1910—

- Section 8 (As to use of posts by Postmaster-General).

25. Subsection (b) (4) of section 54 (For protection of Postmaster-General) of the Order of 1907 shall be read and have effect as if the words “ generated or used “ by or supplied to the Company for the purposes of this “ Order enter any of the Company’s works ” were inserted in that subsection in substitution for the words “ generated “ for the purposes of this Order at any works of the “ Company enter thereon.”

Amend-ment of section 54 (b) (4) of Order of 1907.

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Power to
purchasing
authorities
to purchase
under-
taking.

26. Notwithstanding anything in the existing Orders or this Act or any provisions of the Tramways Act 1870 incorporated with those Orders or this Act or any of them the following provisions shall (unless otherwise agreed between the Company and the purchasing authorities or either of them) have effect with reference to the purchase by the purchasing authorities of the undertaking (except so much thereof as comprises the omnibus undertaking) (hereinafter in this section referred to as "the said undertaking") :—

(1) Subject as hereinafter provided it shall be lawful for the purchasing authorities if by resolution passed at a special meeting of each of the purchasing authorities they so decide to purchase on the thirty-first day of December one thousand nine hundred and sixty or the thirty-first day of December in every subsequent tenth year (but at no other date) so much of the said undertaking as is situate within their respective districts upon terms of paying the fair market value of such portion of the said undertaking as a going concern but without any addition in respect of compulsory purchase which value shall be determined in case of difference by arbitration in manner provided by this section :

(2) The powers of compulsory purchase conferred on the purchasing authorities by this section shall be exerciseable only upon and subject to the following terms and conditions (that is to say) :—

(a) The Company shall not be required to sell any part of the said undertaking unless the whole of the said undertaking is purchased at one and the same time ;

(b) If the purchasing authorities decide to purchase the said undertaking they shall give to the Company notice in writing of such their decision not later than the thirty-first day of December in the year preceding the date of purchase ;

(c) If the corporation duly give notice to the Company and the county council are

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unwilling to join in the purchase the corporation may require the Company to sell and the Company shall sell to them the whole of the said undertaking;

(d) the sum to be paid to the Company in respect of such purchase shall if not agreed be determined by one and the same referee nominated under section 43 of the Tramways Act 1870 and in one and the same proceeding but the said referee shall by his award determine separately as respects each of the purchasing authorities (if more than one) the value of the said undertaking situate in the district of that purchasing authority including all lands buildings works materials and plant of the Company suitable to and used by them for the purposes of the said undertaking within such district;

(e) the respective sums to be paid to the Company by each of the purchasing authorities (if more than one) shall together be equal to the fair market value of the said undertaking as a going concern:

- (3) Subject to the foregoing provisions of this section section 43 of the Tramways Act 1870 including the provisions of that section with regard to the transfer to vesting in and exercise by the purchasing authorities or the corporation as the case may be of the rights powers and authorities of the promoters in respect of the undertaking sold the payment of the purchase money and all expenses incurred in the purchase and the borrowing of money for the purposes thereof shall apply to the purchase of the said undertaking by the purchasing authorities or the corporation under this section as if the said section 43 with any necessary modifications were re-enacted in this Act and as if the purchasing authorities or the corporation were the local authority within the meaning of that section and in the application of the said section 43 to the county council the local rate shall be the county fund:

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- (4) On any sale to the purchasing authorities or the corporation such arrangements as may be approved by the Minister shall be made for vesting the said undertaking in the purchasing authorities or the corporation and for a scheme or schemes for the future maintenance management and working of the said undertaking and the sale shall not take effect until an instrument has been properly executed in a form approved by the Minister for carrying into effect such arrangements.

Power of
sale.

27.—(1) The Company may at any time with the consent of the Minister sell the undertaking to the corporation (if the corporation shall have decided by a resolution passed at a special meeting to make such purchase) or to any company or person.

(2) The Company may with the like consent sell so much of the undertaking as is within the district of any purchasing authority to such authority if such authority shall have decided by a resolution passed at a special meeting to make such purchase.

(3) Where any purchase is made by any purchasing authority under the provisions of this section such purchasing authority may pay the purchase money and all expenses incurred by them in relation to such purchase out of the like rate or fund and shall have the like powers to borrow money and to exercise all such other powers in relation to such purchase as if such purchase were made under the last preceding section of this Act.

(4) The sale of the undertaking to the corporation or to any company or person under the provisions of this section shall not in any way prejudice the rights of the county council under the provisions of the section of this Act of which the marginal note is "Power to purchasing authorities to purchase undertaking" of purchasing so much of the undertaking as is situate within their district.

Power
to run
omnibuses.

28.—(1) The Company may provide maintain work and run omnibuses along the routes of the existing light railways and the new routes described in and authorised by paragraph (b) of the section of this Act the marginal note whereof is "Power to use trolley vehicles" and along any other route in the borough of Llanelly and in

the rural district of Llanelly in prolongation of or in connection with any trolley vehicle route omnibus route or light railways operated by the Company. A.D. 1930.

(2) The Town Police Clauses Acts 1847 and 1889 so far as they apply to omnibuses shall subject to the provisions of this Act apply to any omnibus provided by the Company under this section.

(3) The powers of this section shall be exerciseable by the Company subject to such byelaws as the licensing authority or licensing authorities of the borough district or districts in which such omnibuses may be run are now or may hereafter be empowered to make and enforce with reference to omnibuses.

(4) The Company may provide such plant appliances and conveniences as may be requisite or expedient for the establishment running maintenance and equipment of the omnibuses provided by the Company under this Act.

(5) The Company may make byelaws for regulating the travelling in or upon such omnibuses and for the prevention of nuisances in or upon the same or in or against any premises held by the Company in connection therewith.

(6) Any omnibus moved by electrical power shall be so equipped and worked as to prevent any interference with telegraphic communication by means of any telegraphic line (as defined by the Telegraph Act 1878) of the Postmaster-General.

(7) The provisions of section 51 (Penalty on passengers practising frauds on the promoters) and section 56 (Recovery of tolls penalties &c.) of the Tramways Act 1870 shall apply to and in relation to the omnibuses of the Company as if they were carriages used on tramways.

(8) Subsection (2) of this section shall on the passing during this or the next session of Parliament of any general Act relating to road traffic cease to have effect in relation to the omnibuses of the Company so far as such omnibuses are vehicles to which the provisions of any such general Act apply and subsections (5) and (7) of this section shall cease to have effect upon the coming into force of any general regulations as to the conduct of passengers in vehicles made by the Minister under any

A.D. 1930. — such general Act. passed as aforesaid in so far as such general regulations apply to the omnibuses of the Company.

(9) (a) If the purchasing authorities or the corporation decide to purchase the undertaking (except so much thereof as comprises the omnibus undertaking) in manner provided by the section of this Act whereof the marginal note is "Power to purchasing authorities to purchase undertaking" such authorities or the corporation may and shall also purchase the omnibus undertaking and the provisions of the said section of this Act shall extend and apply to the purchase by the purchasing authorities or the corporation of the omnibus undertaking.

(b) After the completion of the purchase of the omnibus undertaking by the purchasing authorities or the corporation the powers of the Company to provide maintain work or run omnibuses in the borough of Llanelly and the rural district of Llanelly shall cease and the provisions of the section of this Act whereof the marginal note is "Restricting running of omnibuses in competition" shall enure for the protection of the purchasing authorities or the corporation.

Application
to trolley
vehicles and
omnibuses
of certain
provisions
of Order of
1907.

29. The following sections of the Order of 1907 shall so far as the same are applicable extend and apply to the trolley vehicles and omnibuses of the Company and to the trolley vehicle routes and omnibus routes and to the Company in respect of the purposes of this Act in as full and complete a manner as if the said sections (with all necessary alterations and with the substitution of the Minister for the Board of Trade) were re-enacted in this Act (that is to say):—

- Section 55 (Rates authorised);
- Section 56 (Rates for passengers);
- Section 57 (As to fares on Sundays and holidays);
- Section 58 (Passengers' luggage);
- Section 59 (Tolls for use of railway);
- Section 60 (Cheap fares for labouring classes);
- Section 62 (Payment of rates and charges);
- Section 65 (Mortgage of undertaking);

Section 66 (Endorsement of notice of future purchase by purchasing authorities); A.D. 1930.

Section 75 (Effect of sale of undertaking);

Section 83 (Form and delivery of notices):

Provided that for the purpose of such extension and application the said section 60 shall be read and have effect as if the words "the Company nevertheless not being required to take any fare less than one penny" had been inserted after the word "distance" in subsection (1) thereof.

30.—(1) The Company may if they think fit convey on the trolley vehicles and omnibuses parcels not exceeding one hundred and twelve pounds in weight and dogs whether in the care of passengers or otherwise. Parcels &c.

(2) The Company may demand and take for the conveyance of any dog a sum not exceeding the fare payable by a passenger travelling between the same stage points and for parcels (other than passengers' luggage referred to in the immediately preceding section of this Act) carried in the trolley vehicles or omnibuses charges not exceeding such maximum charges as may from time to time be approved by the Minister.

31.—(1) If at any time after three years from the opening for public traffic of the trolley vehicle routes or any portion thereof or of any omnibus route or after three years from the date of any order made in pursuance of this section in respect of the trolley vehicle routes or omnibus routes or any portion thereof it is represented in writing to the Minister by the local authority of the district in which the trolley vehicle routes or omnibus routes or such portion is wholly or partly situate or by twenty inhabitant ratepayers of that district or by the Company that all or any of the fares or other charges demanded and taken in respect of the traffic on the trolley vehicle routes or omnibus routes or on such portion should be revised the Minister may (if he thinks fit) direct an inquiry and if the person holding the inquiry reports that it has been proved to his satisfaction that all or any of the fares or charges should be revised the Minister may by order in writing alter modify reduce or increase all or any of the fares or charges to be taken in respect of the trolley vehicle routes or omnibus routes or on any portion Periodical revision of fares and charges.

A.D. 1930. thereof and thenceforth such order shall be observed until the same is revoked or modified by an order of the Minister made in pursuance of this section.

(2) In considering any representation under this section the Minister shall have regard to the capital of the Company and the provision of a reasonable return thereon subject to such adjustment as the Minister may think fit in respect of any capital expended upon works which by reason of the exercise of the powers of this Act have been superseded.

List of
fares &c.
to be
exhibited.

32. A list of the fares and charges by this Act authorised to be demanded and taken in respect of traffic on the trolley vehicles and omnibuses shall be exhibited in a conspicuous place inside each of the trolley vehicles and omnibuses.

Provision as
to general
Act relating
to road
traffic.

33. The provisions of section 58 (Passengers' luggage) of the Order of 1907 as extended and applied to the purposes of this Act and of the section of this Act the marginal note whereof is "Parcels &c." shall on the passing during this or the next session of Parliament of any general Act relating to road traffic and conferring upon the Minister power to make regulations with regard to the carriage of luggage and goods have effect in relation to the omnibuses of the Company (so far as such omnibuses are vehicles to which the provisions of any such general Act apply) subject to any such regulations.

Restricting
running of
omnibuses
in com-
petition.

34.—(1) If and so long as the service or services of transport provided by the Company along any specified route adequately meets the requirements of such route it shall not be lawful except as hereinafter in this section provided for any other company (except a railway company in pursuance of their statutory powers) or for any local authority body or person to run omnibuses along such route or along any other route in competition with such service or services of the Company.

(2) Any failure on the part of the Company to afford an adequate service along any such route which is due to strikes or unforeseen accidents or circumstances beyond the control of the Company shall not deprive the Company of the protection afforded by subsection (1) of this section.

(3) The licensing authority of the borough or district in which any such route or part thereof is situate may and

shall in order to give effect to the foregoing provisions of this section when licensing an omnibus to ply for hire grant such licence subject to conditions as to the routes upon which such omnibus shall or shall not ply for hire Provided that if any question arises between the Company and any company authority body or person as to whether any route in respect of which a licence may be granted to any such company authority body or person is competitive such question shall on the application of either of the parties be determined as hereinafter in this section provided Provided further that the right of the applicant for the licence of appeal to the Minister from the decision of the licensing authority under section 14 (3) of the Roads Act 1920 shall not be affected but the Minister in making any order under that section shall have regard to the provisions of this section. A.D. 1930.

(4) Any question at any time arising as to whether or not the Company are providing an adequate service along any route or whether there is or would be any such competition shall be determined by the Minister and the Minister shall have power to make such order thereon as he thinks fit and any such order shall be enforceable at the instance of the Minister or of the Company or of the licensing authority or of the applicant for a licence by writ of mandamus.

(5) Nothing in this section shall be deemed—

(a) to restrict the running of any omnibus by any such company authority body or person along any specified route or any other route in competition therewith if such omnibus serves a district or districts beyond the districts in which the specified routes are situate and no passenger conveyed by such omnibus is both taken up and set down on any one journey on any specified route or any other route in competition therewith; or

(b) to prevent the grant or renewal of a licence to ply for hire with an omnibus on the condition that no passenger conveyed by the omnibus to which the licence relates shall be both taken up and set down on any one journey on any of the specified routes or any other route in competition therewith; or

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(c) to prevent the renewal (in the name of the licensee or his personal representative or assignee) by the licensing authority of any licence to ply for hire with an omnibus if the licence was on the thirtieth day of November nineteen hundred and twenty-nine in force and applicable to a service of omnibuses which has since that date been regularly in operation on a specified route or a particular part of a specified route or a route in competition therewith or to prevent the grant of a licence to ply for hire with an omnibus substituted by the licensee or his personal representative or assignee for any omnibus to which the protection of this paragraph applies or to restrict the running of any such last-mentioned omnibus or substituted omnibus along such route or part of a route as aforesaid Provided that no omnibus proprietor (other than the Company) shall be entitled under the provisions of this paragraph of this subsection to operate on any specified route or any part thereof or on any route in competition therewith during any period of the year a greater number of omnibuses than were required to operate the services which were worked along that route by that proprietor during the corresponding period of the year preceding the said thirtieth day of November nineteen hundred and twenty-nine and have been regularly in operation on that route during the same period of that year Provided also that no omnibus shall be used in such a manner as to compete unfairly with the service or services of transport provided by the Company and any question arising under this proviso shall be determined in manner provided by subsection (4) of this section.

(6) If the Company shall not have commenced to run trolley vehicles along any specified route within the period prescribed by this Act or such extended period as may be authorised by Parliament this section

shall as from the expiration of such period as aforesaid A.D. 1930.
cease to apply to such specified route. —

35. The Company shall not allow advertisements (save notices relating to the Company's business or to announcements of bands fetes and other occasional entertainments which may contribute to increase the Company's traffic) to be placed on the outside of the windows of any of the trolley vehicles nor on the inside of such windows save on the upper portion thereof and then so as not to obstruct the view of passengers seated in the trolley vehicles nor on the outside of the trolley vehicles save above the level of the roof of the lower deck of the vehicles and then of a depth not exceeding eighteen inches and all advertisements shall be so fixed as not to cause any noise or rattling when the trolley vehicle is moving. Restricting advertisements on trolley vehicles.

36. The Company may purchase by agreement take on lease and hold lands and buildings and may erect on any such lands depots buildings and sheds and may provide such equipment plant appliances and conveniences as may be requisite or expedient for the purposes of the trolley vehicles and omnibuses Provided that the Company shall not create or permit any nuisance on any such lands. Power to purchase lands.

37. The Company shall perform in respect of their trolley vehicles and omnibuses such services in regard to the conveyance of mails as are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway to which that Act relates. Conveyance of mails.

38. The Company may erect and maintain sheds shelters or waiting rooms and gangways for the accommodation of passengers on any trolley vehicle or omnibus route established under the authority of this Act and may with the consent of the local authority and road authority use for that purpose portions of the public streets or roads. Shelters or waiting rooms.

39. For the better regulation of persons desiring to travel in the trolley vehicles or omnibuses of the Company the Company may make byelaws requiring persons waiting to enter any of their trolley vehicles or omnibuses to wait in lines or queues and to enter such trolley vehicles or omnibuses in the order in which they stood Power to require intending passengers to wait in lines or queues.

A.D. 1930. — in such line or queue and in the event of the Company making any such byelaws they may erect and maintain barriers and posts at any stopping place or terminus and for that purpose may with the consent of the road authority use part of a public street or road.

Stopping
and starting
places.

40. The Company may appoint the stations and places from which the trolley vehicles or omnibuses of the Company shall start or at which they may stop for the purposes of taking up or setting down passengers and may make regulations for fixing the time during which such trolley vehicles or omnibuses shall be allowed to remain at any such place. Provided that any starting or stopping station or place appointed by the Company under this section and any regulations made by the Company thereunder for fixing the time during which trolley vehicles or omnibuses shall be allowed to remain at any starting or stopping station shall be subject to the previous approval of the local and road authorities which approval shall not be unreasonably withheld :

Provided also that this section shall on the passing during this or the next session of Parliament of any general Act relating to road traffic and containing provisions empowering local authorities to make orders for fixing stands and stopping places for vehicles cease to have effect in relation to the omnibuses of the Company so far as such omnibuses are vehicles to which such provisions apply.

Through
trolley
vehicles
and
omnibuses.

41.—(1) The Company may run through trolley vehicles or omnibuses along any route on which the Company are for the time being authorised to run trolley vehicles or omnibuses and such trolley vehicles or omnibuses shall be distinguished from other trolley vehicles or omnibuses in such manner as may be directed by the Company and they may demand and take for every passenger by such trolley vehicles or omnibuses a fare or charge not exceeding the maximum fare or charge authorised or chargeable for and in respect of the whole of such route or the whole of the portion thereof traversed by any such trolley vehicle or omnibus. Provided that during the running of such through trolley vehicles or omnibuses the Company shall maintain a reasonably sufficient ordinary service of trolley vehicles or omnibuses.

(2) The powers conferred by this section so far as they relate to the omnibuses of the Company shall not be deemed to in any way restrict the powers (if any) conferred on any person or body of persons having the power to issue licences under the provisions of any general Act passed in this or the next session of Parliament relating to road traffic to impose conditions on the granting of any such licence as to the points at which passengers shall be taken up and set down.

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42.—(1) Notwithstanding anything contained in this Act or any other Act or Order to the contrary the Company may on any occasion run and reserve trolley vehicles or omnibuses on any route on which the Company are for the time being authorised to run trolley vehicles or omnibuses for any special purpose which the Company may consider necessary or desirable. Provided that such special trolley vehicles or omnibuses shall be distinguished from other trolley vehicles or omnibuses in such manner as may be directed by the Company and that during the running of such special trolley vehicles or omnibuses the Company shall maintain a reasonably sufficient ordinary service of trolley vehicles or omnibuses.

Power to reserve trolley vehicles and omnibuses for special purposes.

(2) The Company may make byelaws for prohibiting the use of any such trolley vehicles or omnibuses by any persons other than those for whose conveyance the same are reserved.

(3) The restrictions contained in this Act or any other Act or Order as to fares or charges for passengers shall not extend to any trolley vehicle or omnibus run for special purposes and in respect thereof the Company may demand and take such fares or charges as they shall think fit.

43.—(1) The Company may attach to any lamp-post pole standard or similar erection erected on or in the highway of or near to any of the trolley vehicle routes or omnibus routes signs or directions indicating the position of stopping places for trolley vehicles and omnibuses. Provided that in cases where the Company are not the owners of such lamp-post pole standard or similar erection they shall give notice in writing of their intention to attach thereto any such sign or direction and shall make compensation to the owner for any damage or injury occasioned to such lamp-post pole standard or similar

Attachment of signs indicating stopping places.

A.D. 1930. erection by such attachment and the Company shall indemnify the said owner against any claim for damage occasioned to any person or property by or by reason of such attachment.

(2) Nothing in this section shall be deemed to require the said owner to retain any such lamp-post pole standard or similar erection when no longer required for his purposes.

(3) The Company shall not attach any such sign or direction to any pole post or standard belonging to the Postmaster-General except with his consent in writing.

(4) The Company shall not attach any such sign or direction to any lamp-post pole standard or similar erection belonging to any local authority county council or railway company or to the Central Electricity Board without the consent in writing of the authority council or railway company or of the said board as the case may be.

Cloak-rooms
&c.

44. The Company may provide cloak-rooms and rooms or sheds for the storage of bicycles tricycles and other vehicles at any depot or building used by them in connection with the trolley vehicle undertaking and omnibus undertaking and at suitable places on any of the trolley vehicle routes or omnibus routes and the Company may make charges for the use of such cloak-rooms rooms and sheds and for the deposit of articles and things and bicycles tricycles and other vehicles therein but shall not use for the purpose any part of the highway without the consent of the local authority and the road authority.

Lost
property.

45. Any property found in any trolley vehicle or omnibus of the Company or in any shelter or waiting room in connection with the trolley vehicle undertaking or omnibus undertaking shall forthwith be handed to the conductor of the vehicle or be taken to the head office of the Company and if not claimed within six months after the finding thereof the property may be sold as unclaimed property by public auction after notice by advertisement in one or more local newspapers once in each of two successive weeks.

For pro-
tection of
corporation.

46. Nothing in this Act contained in relation to the running of omnibuses by the Company shall diminish or affect the powers conferred upon the corporation by

the following sections of the Llanelly Corporation Act A.D. 1930.
 1929 :—

- Section 73 (Regulations for controlling traffic);
- Section 74 (Regulations as to stands or stopping places of omnibuses);
- Section 76 (Power to make regulations as to traffic on carnival &c. days);
- Section 78 (Power to stop traffic on occasions of emergency).

47. The Company shall not exercise the powers of the sections of this Act of which the marginal notes are "Shelters or waiting rooms" "Power to require intending passengers to wait in lines or queues" "Stopping and starting places" and "Cloak-rooms &c." upon any road or bridge belonging to or maintainable by any railway company or so as to obstruct the convenient access to or exit from any railway station depot or property.

For protection of railway companies.

48. Nothing contained in this Act shall impose any obligation upon or enlarge any existing obligation of a railway company to strengthen adapt alter or reconstruct any bridge or road maintainable by them.

Saving for railway companies.

49.—(1) The Company on the one hand and any local authority company body or person owning or working any light railways trolley vehicles or omnibuses which may be worked with any light railways trolley vehicles or omnibuses of the Company on the other hand may enter into and carry into effect agreements with respect to the following purposes or any of them (that is to say) :—

Working and other agreements.

- (a) The formation of junctions between the light railways or trolley vehicle systems of the contracting parties;
- (b) The leasing (with the consent of the Minister) working running over using maintaining and managing by either of the contracting parties of the light railways trolley vehicle or omnibus systems or any of the light railways trolley vehicle or omnibus systems of the other and the fixing collecting apportionment and distribution of the rates and profits arising therefrom;

A.D. 1930.

- (c) The supply and maintenance by the working party under and during the continuance of any such agreement as aforesaid for the working of the light railways trolley vehicle or omnibus systems of rolling stock necessary for the purposes of such agreement and the employment of officers and servants;
- (d) The supply of motive power;
- (e) The payments to be made and the conditions to be performed with respect to the matters aforesaid;
- (f) The management regulation interchange collection transmission and delivery of traffic upon or coming from or destined for the light railways trolley vehicle or omnibus systems of the contracting parties.

(2) During the continuance of any agreement under this section for the working running over or user by one of the contracting parties of the light railways trolley vehicle or omnibus systems of the other the light railways trolley vehicle or omnibus systems of the parties so contracting shall for the purposes of calculating maximum fares and charges in respect of conveyance partly over the light railways trolley vehicle or omnibus system of the one party and partly over those of the other be considered as one light railway trolley vehicle or omnibus system as the case may be and the maximum charge for each portion of the entire distance shall be calculated at the maximum rate which according to the scale applicable to such portion would be chargeable for the entire distance.

(3) Nothing in this section or in any agreement made in pursuance of this section shall authorise any local authority to run omnibuses except—

- (a) upon routes along which the local authority have powers under or in pursuance of an Act or Order to provide omnibus services; and
- (b) subject to any statutory limitations restrictions or obligations imposed on the local authority in respect of the exercise of such powers.

(4) In this section the words "light railways" include tramways and tramroads.

MISCELLANEOUS.

A.D. 1930.

50. Where the consent or approval of any local or road authority is by this Act required before the exercise of any powers by the Company and it is provided that such consent or approval shall not be unreasonably withheld any difference as to whether such consent or approval is unreasonably withheld shall be determined by the Minister.

Consents of
local or
road
authority.

51. Any byelaws made by the Company under this Act shall be made subject and according to the provisions of the Tramways Act 1870 with respect to the making of byelaws.

As to
making of
byelaws.

52.—(1) In respect of the exercise of any powers or duties conferred or imposed on the Minister or the giving by him of any consents under the existing Orders or this Act the provisions of Part I of the Board of Trade Arbitrations &c. Act 1874 shall apply as if the Minister were referred to therein in lieu of the Board of Trade and as if in section 4 of that Act the words “under the seal of the Minister of Transport” were substituted for the words “by writing under the hand of the President or of one of the secretaries of the Board.”

Inquiries by
Minister.

(2) Where the Minister causes any inquiry to be held for the purposes of this Act otherwise than in pursuance of an application within the meaning of section 3 of the said Act of 1874 all expenses incurred by the Minister in relation to such inquiry shall be payable and recoverable under the said section 3 as if they were expenses incurred by the Minister in relation to an application.

53. In the accounts of the Company relative to the undertaking the receipts and expenditure upon and in connection with trolley vehicles and omnibuses shall (so far as may be reasonably practicable) be distinguished from the receipts and expenditure upon or in connection with the remainder of the undertaking and from each other and in such accounts capital shall be distinguished from revenue.

Accounts
to be dis-
tinguished.

54. The Company shall in every year within three months after the close of their financial year or such longer period as the Minister may allow furnish to the Minister a copy of their annual accounts.

Accounts to
be furnished
to Minister.

A.D. 1930.

Recovery of
demands.

55. Proceedings for the recovery of any demand made under the authority of this Act or the existing Orders or any subsequent Act relating to the Company or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of
penalties &c.

56. Save as otherwise by the existing Orders or this Act expressly provided all offences against the existing Orders and this Act or any incorporated enactment and all penalties forfeitures costs and expenses imposed or recoverable under the existing Orders or this Act or any incorporated enactment or under any byelaw made thereunder respectively may be prosecuted and recovered in a summary manner Provided that costs or expenses (except such as are recoverable along with a penalty) shall not be recovered as penalties but may be recovered summarily as civil debts.

Repeal.

57. Without prejudice to the generality of any repeal effected by the foregoing provisions of this Act the following provisions of the Order of 1907 are hereby repealed (namely) :—

Section 43 (Waiting rooms for passengers);

Section 46 (Local and road authorities may use railway for certain purposes);

Section 64 (Capital expenditure);

Section 71 (Power of purchasing authority in event of cesser of powers of Company);

Section 72 (Future purchase of undertaking by purchasing authorities);

Section 73 (Power of sale);

Section 74 (Provisions as to purchase).

Copy of
Act to be
registered.

58. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three

months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur a like penalty. Every penalty under this section shall be recoverable summarily. A.D. 1930. ---

There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1929 on registration of any document other than a memorandum of association or the abstract required to be filed with the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding up in England.

59. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act^{or} otherwise in relation thereto shall be paid by the Company. Costs of Act.

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